PARKING GARAGE OR SPACE RENTAL CONTRACT

FORM VALID FOR GEORGIA APARTMENT ASSOCIATION MEMBERS ONLY

A. PARTIES AND PREMISES

Date of Contract:

This Parking Garage or Space Rental Contract is between ("Management") and (Resident). Management leases to Resident, and Resident rents from Management, the Parking Garage or Parking Space No. located at , [Address] Georgia.

If the Resident has also entered into an Apartment Rental Contract with Management, then this parking contract shall become an addendum to the Apartment Rental Contract.

B. TERMS AND CONDITIONS

1. TERM:

The initial term of this lease shall be , beginning at 12 noon, , and ending at 12 noon, , .

2. POSSESSION:

If there is a delay in delivery of possession by management, rent shall be abated on a daily basis until possession is granted. If possession is not granted within seven (7) days after the beginning day of initial terms, then resident may void or rescind this agreement and have full refund of any deposit. Management shall not be liable for damages for the delay in delivery of possession. Resident shall give Management written notice of the election to void or rescind this contract.

3. PARKING RENT:

Rent is payable monthly to Management in the sum of Dollars ($) per month on the first day of each month during the initial or extended term of this lease at the office of management or such other place as management may designate. All rent shall be paid by personal check, cashier's check, certified funds, or money order. Management shall have the right to establish or provide for payment by credit card, debit card, or electronic funds transfer, but Resident does not have the right to make payments by these means unless specifically authorized by Management. Management shall have the right to refuse any tender of payment in cash. No third party checks will be accepted or considered a proper tender or payment of rent. Any additional sums or charges due from resident because of a breach or violation of this parking garage rental agreement shall be due as additional rent. Such additional sums or charges shall include, but are not limited to, damages exceeding normal wear and tear to the parking garage when such damages are caused by resident or resident's family, occupants, guests, or invitees.

4. LATE PAYMENTS AND RETURNED CHECKS:

Time is of the essence of this agreement. After the day of the month, rent shall be late, and a late charge of $ shall be due as additional rent. If Management elects to accept late rent, Resident shall tender all late rents, dispossessory warrant costs, and administrative filing fees to Management only by cashier's check, certified check or money order. In the event Resident's parking rent check is dishonored by the bank, resident shall pay Management $ as an insufficient check service fee plus an additional fee equal to the fee charged to Management by the bank, in addition to rent and late charges.

5. RENEWAL or EXTENSION TERM:

Either party may terminate this agreement at the end of the initial term by giving the other party days written notice prior to the end of the term. If notice is not given, then this agreement will be extended on a (check on of the following boxes) ☐ Month-to-Month (one month at a time) ☐ Bi-Monthly (2 months at a time) basis with all terms remaining the same until terminated, as of the last day of a calendar month, by either party upon days written notice. A 30 day written notice is required to end a Month-to-Month extension, and a 60 day written notice is required to end a Bi-Monthly Renewal. Resident agrees that at the end of the initial term of this residential agreement, (as specified in paragraph 1), or at any time thereafter, Management shall have the right to increase the rent due under paragraph 3 by giving the Resident a written notice at least 15 days prior to the notice required to non-renew the parking rental contract, and such increase shall not terminate this parking rental contract. Unless otherwise allowed by Management, the parking contract shall terminate at the end of a calendar month.

6. NO ASSIGNMENT OR SUBLETTING:

Resident shall not sublet the parking or garage space or assign this lease without prior written consent of management.

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7. DISCLOSURE:

, whose address is
, is authorized to manage the apartment community and the parking garage or space leased. Owner or agent for service of legal notices and lawsuits is
, Whose address is
. The Managing Agent's Corporate Broker's name and license number as required to be disclosed by the rules of the Georgia Real Estate Commission (Ga.R. & Reg. 520-1-.10) is
[Name of Broker] and [GREC License No.].

Equal Housing Opportunity Policy. The apartment owner and Management provide equal housing opportunity for qualified applicants and do not discriminate on the basis of race, color, religion, sex, national origin, familial status, disability, or any other legally recognized status in the State of Georgia. It is the owner's and Management's policy to provide reasonable accommodations in the apartment community's operational policies and procedures and to permit the Resident to make reasonable modifications that are necessary for the Resident and related to the disability for persons with a demonstrated disability. The Resident must request and obtain permission from the owner or Management for any accommodation or modification prior to implementing the same. In general, the cost or expense of physical modifications to the apartment or apartment community is the responsibility of the Resident, unless the applicable law requires the owner or Management to absorb or be responsible for the cost of such modifications. A Resident or occupant with a demonstrated disability is allowed to have a service animal to assist with the person's disability. A disabled Resident or occupant may be allowed to have a commonly accepted domestic dog, cat, or other convenience animal which has not been trained as a service animal only under limited conditions, but such animals will not be allowed if they have a history of dangerous, vicious, or unsafe behavior or are considered to be unsafe, dangerous, or vicious in nature.

8. Fire and Other Casualty.

This lease will end if the parking garage or space is rendered unusable due to fire as long as the fire was not caused by or the responsibility of Resident or Resident's occupants, family, social guests, or invitees. If Resident or his occupants, family, social guests, or invitees were responsible for the fire and the premises are unfit or unsafe for use, then Resident must vacate the parking garage or space and will still remain liable for the rent and damages.

Management shall have the right to terminate the occupancy, use, or lease of the parking garage or space by Resident if Resident or Resident's occupants, family, social guests, or invitees caused or were responsible for causing a fire to the parking garage or space or any other portion of the apartment community. Resident may be eligible for lease another parking garage or space in the apartment community if the Resident is qualified, there is a suitable parking garage or space available, and Resident or Resident's occupants, family, social guests, and invitees did not cause the fire.

Resident is responsible for the cost of repair, replacement cost, and all expenses required to repair or replace the parking garage or space, equipment, building, or property damaged by a fire which Resident or Resident's occupants, family, social guests, or invitees caused. Resident is liable to and shall indemnify, defend, and hold harmless Management and the owner for any damages or repairs caused by a fire which was caused by Resident or Resident's occupants, family, social guests, and invitees.

This lease shall end if the parking garage or space is destroyed or otherwise rendered unsafe or unusable due to an Act of God or any other catastrophic event or casualty that was not the responsibility of Resident or Resident's occupants, family, social guests, or invitees. The Resident shall not continue to occupy or use a parking garage or space which is rendered unsafe or unusable due to fire, Act of God, or other catastrophic casualty and must remove all personal property and return possession to Management.

9. HOLD OVER:

Resident shall remove all resident's property and deliver possession of the parking or garage space in a clean condition and good order and repair to Management upon termination or expiration of this agreement. In the event the Resident fails to vacate the premises after termination, non-renewal or expiration of this rental agreement, then Resident shall pay Management an amount equal to two times the existing rental rate, prorated by the day for each day held over and beyond the termination or expiration of this agreement in addition to the other damages provided for under this agreement. After the termination or expiration of this agreement, Resident shall be deemed to be a tenant at sufferance.

10. RIGHT OF ACCESS:

Management shall have the right of access to said parking or garage space, without notice, for inspection and maintenance during reasonable hours. In case of emergency, Management may enter at any time to protect life and prevent damage to the property.

11. USE PROVISION:

The parking garage or parking space shall be used by Resident for vehicle parking only and shall be occupied and used only by the undersigned Residents. The garage and parking space shall be used only for parking Resident's motor vehicle in accordance with the provisions of the Apartment Rental Contract, Community Rules, and any Parking Rules and Regulations in effect or adopted or amended by Management hereafter. The parking garage or space shall not be used for habitation or storage of any items of personal property but solely for parking and garaging of approved motor vehicles. Said garage and parking space shall be used so as to comply with all federal, state, county, and municipal laws and ordinances. Resident shall not use the Garage or parking space nor permit it to be used in an unsafe manner nor in any disorderly, disruptive, abusive, or unlawful manner nor in any manner so as to interfere with any other Resident's or person's use and quiet enjoyment of the apartment community, the garage or their parking space. A violation of this paragraph shall be a material breach of this rental agreement and constitute a ground for terminating the Apartment Rental Contract and Resident's right of possession to said garage and parking space. Resident shall be responsible and liable for the conduct of his occupants, family, social guests, and invitees with respect to use of said garage or parking space.

12. Property Loss, Insurance, and Crime.

Management and the apartment owner shall not be liable for damage, theft, vandalism, or other loss of any kind to Resident's or his occupant's motor vehicle or personal property, unless such is due to Management's gross negligence or intentional misconduct. Management and the apartment owner shall not be liable to Resident for crimes, injuries, loss, or damage due to criminal acts of other parties.

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Resident must purchase a motor vehicle insurance policy and renter's insurance policy that provides liability insurance for negligent or accidental acts and omissions for which the Resident may be liable in causing injury or damage to the owner, Management, or others.

Resident should purchase property insurance for loss of or damage to Resident's own personal property or motor vehicle. Management is not liable for any loss or damages to Resident's motor vehicle or personal property due to theft, vandalism, bursting or leaking pipes, fire, windstorm, hail, flooding, rain, lightening, tornadoes, hurricanes, water leakage, snow, ice, running water, or overflow of water or sewage. Management shall not be liable for any injury or damage caused by such occurrences, and Resident agrees to look solely to his insurance carrier for reimbursement of his losses for such events.

Management does not market, advertise, represent, offer, or provide security or law enforcement services which will prevent crime or protect Resident or Resident's personal property. Management and the owner do not represent or guarantee that the Resident is safe from crime in the neighborhood or from crime in the apartment or apartment community. Resident agrees to look solely to public law enforcement, emergency services, or fire services for police, emergency, fire , security, or protection services.

Resident acknowledges that he or she has an obligation to exercise due care for his or her own safety and welfare at all times and that Management is not liable to Resident for the criminal acts of other persons. Resident agrees that he or she will not and cannot rely on the existence or absence of security equipment or personnel as a representation of safety from crime and understands that he or she must be vigilant and exercise caution for their personal safety at all times. Resident waives and releases the apartment owner and Management for any liability, injury, loss, or damages related to crimes committed by other persons against Resident or related to allegations that the owner or Management were negligent or failed to provide security or protection to prevent crime.

13. PETS, SERVICE, and ASSISTIVE ANIMALS:

No pets, service, or assistive animals of any kind shall be permitted in said garage or parking space without prior written consent of management and a Pet, Service, and Assistive Animal Addendum. The garage or parking space cannot be used to house or keep an animal.

14. INDEMNIFICATION:

Resident releases management from liability for and agrees to indemnify management against all losses incurred by management as a result of (a) resident's failure to fulfill any condition of this agreement; (b) any damage or injury happening in or about garage or parking space to resident's invitees or licensees or such person's property, except where such is due solely to landlord's negligence; (c) resident's failure to comply with any requirements imposed by any governmental authority; (d) any judgment, lien, fine or other encumbrance filed or assessed against management or the apartment as a result of resident's acts or omissions; and (e) any negligence of resident.

15. FAILURE OF MANAGEMENT TO ACT:

Failure of management to insist upon strict compliance with the terms of this agreement shall not constitute a waiver of management's rights to act on any violation.

16. REMEDIES CUMULATIVE:

All remedies under this agreement or by law or in equity shall be cumulative. In a civil suit or dispossessory warrant for any breach of this agreement, the prevailing party shall be entitled to attorney's fees in the amount of fifteen percent of principal and interest owing and all expenses of litigation, including, but not limited to, court costs, dispossessory warrant costs and administrative filing fees.

17. NOTICES:

Any notice required by this agreement shall be in writing and shall be deemed to be given if delivered personally or mailed by first class mail or by registered or certified mail, (a) if to resident, to the apartment or to the last known address of resident; (b) if to management, to the office of management or such other place as management may designate.

18. REPAIRS:

Resident accepts garage or parking space in "as is" condition as suited for the use intended. Resident understands and agrees that the garage or parking space will be under the exclusive custody and control of resident and agrees to keep the same in a clean, sightly and sanitary condition. If any damage, beyond normal wear and tear, is caused by Resident or Residents occupants, family, social guests, or invitees, then Resident shall be liable for all such damages which shall be due as additional rent the cost to repair or replace such damage, and payment shall be due with the next month's rent.

19. ABANDONMENT:

Resident(s) agree not to abandon said garage or parking space. Management shall have the sole discretion to determine those circumstances under which it deems the garage or parking space to be abandoned and shall have the right, without notice, to store or dispose of any motor vehicle or personal property left in the garage or leased space or community premises by resident. Management shall also have the right to dispose of any motor vehicle or personal property remaining on the premises after termination of this rental agreement or after termination of resident's right to possession of said garage or space. Resident agrees that Management shall have no liability for any action taken to secure said garage or parking space, obtain possession, or dispose of any motor vehicle or personal property which Management deems to have been abandoned on the community premises. Resident agrees that he has consented to this provision and that a determination of the circumstances under which property is deemed to have been abandoned is purely a contractual matter, and any alleged breach on the part of Management shall not give rise to a claim in tort or for punitive damages.

20. MORTGAGEE'S RIGHTS:

Resident's rights under this lease shall at all times be automatically junior and subject to any deed to secure debt which is now or shall hereafter by placed on premises of which garage, parking space, or apartment is a part; if requested, resident shall execute promptly any certificate that management may request to specifically implement the subordination of this paragraph.

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21. DEFAULT:

A default in the terms of the Apartment Rental Agreement shall also constitute a default in the terms of this Parking Garage or Space Rental Contract, giving Management all rights and remedies afforded under this agreement or as provided at law and in equity. If Resident fails to pay any rent or other charges as and when due hereunder, or if Resident abandons the garage or parking space or fails to perform any of his obligations hereunder, then, upon the happening of said events, Resident shall be in default hereunder and Management may, at its option, terminate this agreement or Resident's right of possession by written notice to Resident. Resident shall surrender possession of the garage or parking space to management upon the effective date of such termination notice and Resident shall be liable to Management for, and shall indemnify management against, all rent loss and other expenses (for reletting, refurbishing, cleaning or otherwise making the garage or parking space suitable for reletting) suffered or incurred by Management as a result of Resident's default and the termination of this agreement. Notwithstanding the commencement of a dispossessory proceeding and the issuance of a writ of possession on account of any default by Resident, resident shall remain liable for all rent and other charges accrued through the date on which possession is obtained by management and shall continue to be liable for any rental accruing thereafter until the earlier of (a) the expiration of the terms of this lease; or (b) the re-rental of the garage or parking space.

22. INCORPORATION BY REFERENCE OF OTHER AGREEMENTS OR ADDENDA:

Resident(s) acknowledge and agree that the terms and conditions of the Apartment Rental Contract, Community Rules, and/or Parking Rules and pertaining to Vehicles and Parking, are incorporated by reference herein, whether separately signed by the parties or not. Violation of any of said provisions shall give Management the right to terminate Resident(s) right to possession of said parking space, the right to tow or remove at Resident(s)' expense any vehicles parked in said garage or parking space, and any other rights and remedies afforded at law or in equity. A violation or breach of any terms and provisions of this Parking Garage or Space Rental Contract shall also constitute a default under the Apartment Rental Agreement.

23. NO REPRESENTATION OF PROVIDING SECURITY:

Resident(s) acknowledge and agree that no representations, covenants, or warranties, either express or implied, exist or have been made by the owner or Management that security devices or security personnel are, have been, or will be provided to protect Resident(s) or their property from crime to their person or property either inside the garage or on the apartment complex premises. Management and owner are not insurers of Resident(s)' safety or the safety of Resident'(s) car and property. Resident(s) acknowledge and agree that garage parking is an amenity and convenience for protection from the weather and natural elements, and that the right to park inside the garage does not provide any added protection against crimes to the Resident(s) or their personal property. Resident(s) agrees to lock his or her car at all times it is left unattended in the garage and agrees not to leave valuables or other personal items inside the car. Resident(s) acknowledge and agree that they have been advised that they must have and maintain the minimum liability insurance required to be carried by state law on any vehicle parked or operated in said garage and shall look solely to Residents) insurance carrier for payment of any damages sustained to Resident(s) automobile, vehicle, or personal property. Resident(s) acknowledges and understands that he or she has a duty to exercise care for his or her own safety at all times and that neither the owner or Management are liable for criminal acts of other persons.

24. AUTHORITY FOR REMOVAL OF VEHICLES:

Resident(s) agree that they shall not park in any garage or space other than the one assigned and rented to them for their exclusive use. Resident(s) shall promptly report to Management any automobiles, vehicles or other property which are improperly parked or left in Resident(s)' assigned space. Resident(s) agree that they have no authority on their own initiative to call a towing service or cause another Resident's, occupant's, social guest's, or invitee's automobile, vehicle, or property to be removed from or towed from Resident(s)' assigned garage or space. Only Management shall be authorized to have a vehicle or other property removed which is in violation of the terms and provisions of this or any other Parking Garage Rental Contract.

25. RESIDENT LIABLE FOR OCCUPANTS, FAMILY, SOCIAL GUESTS, & INVITEES:

All terms and provisions of this agreement shall apply to both Resident(s) and Resident(s) family, occupants, social guests, and invitees. Resident(s) agree to communicate and explain all parking rules and regulations and the terms of this Parking Garage or Space Rental Contract to their family, occupants, social guests, and invitees. Resident shall be liable for any damages or loss incurred by Management or owner due to the conduct, negligence, acts, or failure to act of Resident's family, occupants, social guests, and invitees.

26. REMOVAL OF VEHICLE UPON VIOLATION:

Resident(s) acknowledges and agrees that the failure to pay parking rent for the garage or space when due, violation of this Parking Garage Rental Agreement, violation of any of the Apartment Rental Agreement provisions or Addenda pertaining to parking or operation, storage, and maintenance of any automobile, vehicle, or other property shall give Management the right to immediate towing, removal, and storage of any automobiles, vehicles or personal property at the owner's or operator's expense without the requirement of any written or oral notice or warning whatsoever. In addition to Management's right to remove said vehicle in the event of a default, Management shall also have the right to terminate this Parking Garage or Space Rental Contract or Resident(s)' right to use and possession of said garage or space and to recover all rents and other charges which are or may come due. Neither towing of an automobile, vehicle or property nor termination of the right to use and possess a garage or parking space shall relieve Resident(s) of liability for rent and other charges which have accrued nor for subsequent rent which may come due up until such time as the garage space is re-let. Management shall not be required to file any suit or legal proceeding to enforce its right of towing or removal of a vehicle or property, unless otherwise required by state law. Management and owner shall not be required to make an election of which remedies they will pursue, and all remedies for a breach shall be cumulative.

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27.

Resident agrees to abide by all parking rules established by Management. If Management has designated spaces for Resident to park or areas for boats, trailers, campers or other vehicles, Resident agrees to park only in those garage or space so designated. Non-operable, abandoned or unauthorized vehicles are not permitted on the apartment community premises. Any such non-operable, abandoned or unauthorized vehicle may be removed by Management at the expense of Resident or other person owning same, for storage or public or private sale, at Management's option, and the Resident or person owning same shall have no right of recourse against management therefore. The definition of non-operable, abandoned, or unauthorized vehicles shall be liberally construed in favor of Management. In addition, but not limited to, their generally accepted definitions, "unauthorized" and "non-operable" shall also mean vehicles which:

a. Are noxious, offensive, unsightly, unpleasant or unkempt such as could reasonably affect the appearance or rental marketability of the property or such as could reasonably cause embarrassment, discomfort, annoyance, or nuisance to Management, owners or other residents;
b. Are causing damage to the apartment community or the parking lot, including but not limited to, oil or gas leaks, seepage or spills and motorcycle kickstands which sink into the pavement;
c. Are not registered with Management as required;
d. Are not properly parked between parallel lines or other lines marking spaces for parking;
e. Are blocking access to any prohibited areas, designated "no parking" areas, fire lanes, fire hydrants, ingress and egress travel lanes, entrances, exists, trash dumpsters or compactors or maintenance or service areas;
f. Are left on blocks or jack stands;
g. Appear to be in a state of disrepair;
h. Appear to be incapable of self-propelled movement;
i. Do not have a proper license tag, current license decal validation sticker, current state emissions inspection sticker or minimum applicable motor vehicle insurance; or
j. Are unsafe or dangerous.

Unauthorized, non-operable or abandoned vehicles shall not be kept, placed, stored, parked, maintained or operated in any area of the apartment community. The term "vehicle" includes, but is not limited to, both motorized and non-motorized vehicles such as automobiles, trucks, vans, motorcycles, boats, trailers, campers, mobile homes, motorhomes, commercial trucks, buses and heavy motorized or mechanized equipment or vehicles. Management shall have the right to adopt additional rules and regulations upon reasonable notice to Resident. An "abandoned motor vehicle" shall include, but is not limited to, any vehicle, motor vehicle or trailer which has been left unattended on the apartment community property for a period of not less than thirty days without anyone having made a claim thereto.

28. MANAGEMENT'S PERMISSION OR CONSENT:

If any provision of this contract requires the written permission or consent of Management as a condition to any act of resident, such written permission or consent may be granted or withheld in the sole discretion of management, may contain conditions as management deems appropriate and shall be effective only so long as resident complies with such conditions. Moreover, any written permission or consent given by Management to Resident may be modified, revoked or withdrawn by Management at any time, at Management's sole discretion, upon reasonable written notice to Resident.

29. GENDER:

In all references herein to resident, the use of the singular number is intended to include the appropriate number as the text of this lease may require, and all gender references to male or female are intended to be gender neutral.

30. NO ESTATE IN LAND:

This agreement creates only the relationship of a license between the management and resident; resident has a usufruct only and not an estate for years; and no estate shall pass out of management.

31. ENTIRE AGREEMENT:

This agreement and any attached addenda constitute the entire agreement between the parties and no oral statements shall be binding.

32. JOINT AND SEVERAL LIABILITY:

Each person who signs this contract as a Resident understands and agrees that their liability hereunder is both joint and several.

33. AGENCY DISCLOSURE:

Management is acting on behalf of the owner of the apartment and in connection therewith receives compensation from the owner.

34. DISCLOSURE OF TOWING COMPANY:

Resident(s) acknowledge that _____ (name of towing company) located at _____ (address) is authorized to tow and/or remove any improperly parked or stored automobiles, vehicles, or property, and Resident(s) agree to pay for all costs of towing and storage. Resident acknowledges that it is solely his or her responsibility to retrieve said property if removed and that Resident's failure to do so may result in the sale of said property to pay towing and storage expenses. Management shall have the right to change or substitute another towing company from that named above and may notify Resident of such change at any time hereafter, either before or after removal of any vehicle.

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35. SPECIAL STIPULATIONS:

The following stipulations shall control in the event of conflict with any of the foregoing:

IN WITNESS WHEREOF, the parties hereto have caused these presents to be signed in person or by a person duly authorized the day and year above written.

SIGNATURES OF PARTIES

Management

Name of Owner or Management Company *As Landlord*

By:

Signature of Management Representative Name

As:

(Job Title)

Residents

(Resident Signature)

Printed Name of Resident:

(Resident Signature)

Printed Name of Resident:

(Resident Signature)

Printed Name of Resident:

(Resident Signature)

Printed Name of Resident:

(Resident Signature)

Printed Name of Resident:

(Resident Signature)

Printed Name of Resident:

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